

SUPERIOR COURT OF CALIFORNIA
COUNTY OF MERCED

Civil Law and Motion Tentative Rulings
Hon. Stephanie L. Jamieson
Courtroom 8

627 W. 21st Street, Merced

Friday May 15, 2026
8:15 a.m.

The following tentative rulings shall become the ruling of the court unless a party gives notice of intention to appear as follows:

1. You must call (209) 725-4240 to notify the court of your intent to appear.
2. You must give notice to all other parties before 4:00 p.m. of your intent to appear.

Per California Rules of Court, rule 3.1308(a)(1), failure to do both items 1 and 2 will result in no oral argument. *Note:* Notifying CourtCall (the court's telephonic appearance provider) of your intent to appear does not satisfy the requirement of notifying the court.

Case No.	Title / Description
----------	---------------------

21CV-03369	Veronica Padron vs Bhavesh Patel, et. al.
------------	---

Motion for an Order Compelling Defendant Bhavesh Patel, to Comply with the Court's 3-27-24 Order to Pay Monetary Sanctions in the Amount of \$400 by 4-5-24 in Connection with Plaintiff's Motion Deeming all Requests for Admission Admitted & to Respond to Plaintiff's Second Set of Form Interrogatories by 4-5-24 & Pay Monetary Sanctions in the Amount of \$400

Plaintiff's motion is GRANTED IN PART and DENIED IN PART.

Defendant Patel has failed to comply with this court's March 27, 2024, order.

The request for monetary sanction is GRANTED.

Monetary sanctions in the amount of \$1,430 are to be paid to Plaintiff's counsel within fifteen (15) days of this court's order.

Defendant Patel is ordered to comply with this court's discovery order entered on March 27, 2024, within five (5) days of being served with this order.

The request for evidentiary sanction is DENIED WITHOUT PREJUDICE. Any request for issue or evidentiary sanctions must be accompanied by a separate statement. (Rules of Court, rule 3.1345, subd. (a)(7).)

Motion to Compel the Deposition of Defendant Bhavesh Patel and Production of Documents and Request for Monetary Sanctions in the Amount of \$2,461.05

Plaintiff's motion to compel the deposition of defendant Patel and production of documents is GRANTED.

Service of a notice of deposition is effective to require a party to attend and testify as well as produce any document for inspection and copying. (Code Civ. Proc. § 2025.280 subd. (a).)

Defendant Patel failed to appear for his properly notice deposition on December 17, 2025.

Defendant Patel is ordered to appear for his deposition via Zoom, or any appropriate remote platform, on May 19, 2026, and to produce the documents set forth in the Requests for Production of Document attached to the deposition notice.

The request for monetary sanction is GRANTED.

Monetary sanctions in the amount of \$2,461.05 are to be paid to Plaintiff's counsel within fifteen (15) days of this court's order.

24CV-01907 Key Star Capital Fund III, L.P. vs Kenneth Zwart, et al.

Application for Writ of Attachment

The application of plaintiff Key Star Capital Fund III, L.P, for a writ of attachment against defendants Kenneth J. Zwart and Beverly A. Zwart is GRANTED in the amount of \$376,844.11.

A writ of attachment will issue upon the filing of an undertaking of \$10,000 by Key Star Capital. (Code Civ. Proc. §§ 489.210, 489.220.)

Having reviewed the application, supporting memorandum of points and authorities and declaration, the court finds that Key Star Capital's claim is one on which an attachment may be issued; Key Star Capital has established the probable validity of the claims on which the attachment is based; the attachment is sought for no purpose other than the recovery on the claim on which the attachment is based; and the amount to be secured by the attachment is greater than zero.

Key Star Capital has put forth sufficient evidence supporting establishing probable validity as to the claim regarding the promissory note. (Hrebenar Decl. ¶¶5, 9-11, 16, and Exhibits 1 and 2 attached thereto.)

The amount to be secured by the attachment was determined by an evaluation of the probable validity of Key Star Capital's claim regarding the principal amount remaining on